

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----x Index No.:

JIMMY BATISTA,

Plaintiff,

Date Purchased:

Plaintiff designates
QUEENS COUNTY as
the place of Trial

-against-

SUMMONS

CITY OF NEW YORK, POLICE OFFICER
JEREMY BRANDENBURG (Shield No. 2321-Tax
Id No. 945523) Individually and in his Official
Capacity, POLICE OFFICER MATTHEW
LEWIS (Shield No. 4736-Tax Id No. 941054)
Individually and in his Official Capacity and
POLICE OFFICERS JOHN DOES (The
Identity and Number of Whom is Presently
Unknown to Plaintiff) Individually and in their
Official Capacities,

The Plaintiff resides
in Queens County

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Stony Point, New York
April 11, 2023


JEFFREY T. MILLMAN, ESQ.
PHILLIPS & MILLMAN, LLP
Attorneys for Plaintiff
148 South Liberty Drive
Stony Point, New York 10980
(845) 947-1100

Defendants' Address:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007
serviceecf@law.nyc.gov

Det. Jeremy Brandenburg (Shield No. 2321; Tax Reg. No. (945523))
Queens Borough Narcotics South
14-04 111 Avenue
College Point, NY 11356

Sgt. Matthew Lewis (Shield No. 24736; Tax Reg. No. (941054))
Queens Borough Narcotics South
14-04 111 Avenue
College Point, NY 11356

Police Officers John Does
Queens Borough Narcotics South
14-04 111 Avenue
College Point, NY 11356

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----x

Index No.

JIMMY BATISTA,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER
JEREMY BRANDENBURG (Shield No. 2321-Tax
Id No. 945523) Individually and in his Official
Capacity, POLICE OFFICER MATTHEW
LEWIS (Shield No. 4736-Tax Id No. 941054)
Individually and in his Official Capacity and
POLICE OFFICERS JOHN DOES (The
Identity and Number of Whom is Presently
Unknown to Plaintiff) Individually and in their
Official Capacities,

Defendants.

-----x

Plaintiff, by his attorneys, PHILLIPS & MILLMAN, LLP, complaining of the Defendants
herein, respectfully shows, upon information and belief, as follows:

PRELIMINARY STATEMENT**PARTIES**

1. At all times hereinafter mentioned, Plaintiff, JIMMY BATISTA (hereinafter
“BATISTA”), was and still is a resident of the County of Queens, State of New York.

2. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK
(hereinafter “CITY”), was and still is a municipal corporation duly organized and existing
under and pursuant to the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant, CITY, maintained a
Police Department (hereinafter “NYPD”), the employees of which act as its agents,
servants and/or employees in the area of law enforcement.

4. At all times hereinafter mentioned, Defendant, JEREMY BRANDENBURG (hereinafter "BRANDENBURG"), was an employee of Defendant, CITY.

5. At all times hereinafter mentioned, Defendant, BRANDENBURG, was a police officer of the NYPD.

6. At all times hereinafter mentioned, Defendant, BRANDENBURG, was acting within the scope of his employment.

7. At all times hereinafter mentioned, Defendant, BRANDENBURG, was acting under color of law.

8. Defendant, BRANDENBURG, is being sued individually and in his official capacity.

9. At all times hereinafter mentioned, Defendant, MATTHEW LEWIS (hereinafter "LEWIS"), was an employee of Defendant, CITY.

10. At all times hereinafter mentioned, Defendant, LEWIS, was a police officer of the NYPD.

11. At all times hereinafter mentioned, Defendant, LEWIS was acting within the scope of his employment.

12. At all times hereinafter mentioned, Defendant, LEWIS, was acting under color of law.

13. Defendant, LEWIS, is being sued individually and in his official capacity.

14. At all times hereinafter mentioned, Defendants, JOHN DOES, were employees of Defendant, CITY.

15. At all times hereinafter mentioned, Defendants, JOHN DOES, were police

officers of the NYPD.

16. At all times hereinafter mentioned, Defendants, JOHN DOES, were acting within the scope of their employment.

17. At all times hereinafter mentioned, Defendants, JOHN DOES, were acting under color of law.

18. Defendants, JOHN DOES, are being sued individually and in their official capacity.

19. On or about August 22, 2022, and within ninety (90) days of accrual of Plaintiff's claims, the Plaintiff filed a Notice of Claim in the manner and mode required by law.

20. The Plaintiff has complied with the request of the municipal defendant for an oral examination pursuant to § 50-h of the General Municipal Law in that a 50-h hearing was held on November 3, 2022.

21. More than 30 days have elapsed since the filing of Plaintiff's Notice of Claim and adjustment or payment thereof has been neglected or refused.

22. That this action is brought within one (1) year and ninety (90) days from the accrual of all causes of action.

23. That Plaintiff has complied with all conditions precedent applicable to the instant action.

24. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

STATEMENT OF FACTS

25. Plaintiff repeats, reiterates and realleges each and every allegation contained

in paragraphs numbered "1" through "24" above as if fully set forth herein at length.

26. On or about May 26, 2022, at approximately 5:30 a.m., in the premises of 14-80 Beach Channel Drive, Apt. 3C, Far Rockaway, New York, which Defendants state occurred on or about May 26, 2022 at 6:00 a.m., Defendants, CITY, its agents, servants and/or employees, including Defendants, BRANDENBURG, LEWIS and JOHN DOES, while in the employ of and performing work for the Defendant, CITY, and/or the NYPD, and within the scope of their employment, willfully, wrongfully, maliciously, wantonly, unnecessarily and without just cause or provocation, unlawfully searched, seized, detained and arrested the Plaintiff without probable cause or evidence of his involvement in any crime; applied excessive force in the course of the unlawful detainment of the Plaintiff and further denied the Plaintiff his due process rights, violated the civil and constitutional rights guaranteed and afforded under the United States Constitution and the Constitution of the State of New York.

27. Plaintiff had not committed any crimes or violations of the law and had not been accused of such by any identified witnesses.

28. At said date, time and location, Plaintiff was asleep in his domicile when he was awakened by a series of loud explosive like bangs coming from the entrance of the apartment. Plaintiff, alarmed, jumped out of bed and ran to his stepdaughter's room to make sure she was safe. Plaintiff then proceeded to check the front door where he was greeted by several police officers including defendants with guns drawn. Additionally, several of the officers were equipped with riot shields.

29. Plaintiff panicked, ran out into the hallway with his hands up with his domestic partner behind him in little more than a "spaghetti string shirt". Plaintiff was

immediately hand cuffed and placed in his living room.

30. Plaintiff was not shown a warrant.

31. Defendants proceeded to question Plaintiff, asking him questions such as “if he had flushed any narcotics down the toilet”. Defendants proceed to asked if Plaintiff had any “drugs” in the apartment, in which Plaintiff replied that he had a small legal amount of CBD and Marijuana in a duffel bag by the front door. At the time of the incident both Marijuana and CBD were legal substances in the State of New York and remain legal substances. Defendants subsequently emptied the CBD and Marijuana into his fish tank.

32. As Defendants continued to search, his domestic partner, young stepdaughter, and his two dogs were in serious distress, frightened as to what was happening.

33. Additionally, Defendants searched the apartment, “tossing” the premises as they went. Furthermore, as Defendants searched the apartment, they damaged many of the Plaintiff’s personal effects, including several valuable collectibles.

34. As Defendants ransacked the apartment, they removed a limited-edition pottery toy stored in a bin in Plaintiff’s closet. Additionally, the bin contained 269 grams of pottery clay, which was in red wrapping.

35. Defendants unreasonably came to the conclusion that the pottery clay was cocaine.

36. Defendants failed to perform any field tests on the pottery clay to test for narcotics. Defendants further failed to properly identify the substance of the pottery clay.

37. Defendants, including, BRANDENBURG, LEWIS and JOHN DOES, lacked

any probable cause or reasonable suspicion to search, seize or arrest Plaintiff and his property.

38. Defendants never observed Plaintiff commit any crime or violation of the law and were never informed that Plaintiff committed any crime or violation of the law, including felony possession of a controlled substance.

39. Plaintiff was subsequently placed under arrest by Defendants and taken to the 101st precinct, where Plaintiff was charged with criminal possession of a controlled substance in the first degree. Furthermore, Defendants confiscated Plaintiff's belongings including Plaintiff's pottery clay, monies in the amount of \$546.00, and Plaintiff's Cellphone.

40. During the entirety of the unlawful search and arrest Defendants failed to wear body cameras and/or record the incident on body cameras, despite being required to do so under New York City Police Department policy.

41. Defendants placed Plaintiff in hand and ankle cuffs. Defendants placed cuffs too tight on the Plaintiff causing injury. Additionally, Defendants' handling of the Plaintiff resulted in injury.

42. Subsequently, Plaintiff was transferred from the 101st precinct to Jamaica Hospital, where he was treated in the emergency room for his injuries.

43. Due to the lack of probable cause for the searches and seizures of Plaintiff's person and property, the aforementioned conduct constituted the completed torts of assault and battery by Defendants, including BRANDENBURG, LEWIS and JOHN DOES.

44. Prior to Plaintiff being arraigned in criminal court, Defendants caused a criminal court complaint to be filed against Plaintiff in Queens County Criminal Court, which

falsely accused Plaintiff of committing the crime of criminal possession of a controlled substance in the first degree, PL 220.21 01.

45. Plaintiff asserts that Defendants, including BRANDENBURG, LEWIS and JOHN DOES, falsely arrested, wrongfully detained Plaintiff with the full knowledge that he had committed no crimes or violations of the law.

46. Additionally, Plaintiff asserts that Defendants, including BRANDENBURG, LEWIS, and JOHN DOES, did not inform Plaintiff of his Miranda rights when he was arrested, or anytime thereafter.

47. At all times relevant hereto, the Defendants were involved in the decision to search, seize, and arrest Plaintiff and his property without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

48. Plaintiff was assigned Public Defender Michael Gluck of The Legal Aid Society for representation. Plaintiff was offered by prosecution lifetime parole in exchange for a guilty plea to the aforementioned charges. Plaintiff refused to accept a guilty plea as Plaintiff was innocent of charges and rightfully knew so.

49. Additionally, Plaintiff was asked by officers in his transfer from the 101st precinct to Jamaica Hospital to be an informant for the NYPD.

50. At all times relevant hereto, Defendants, including, BRANDENBURG, LEWIS and JOHN DOES, subjected Plaintiff to excessive force, or failed to intervene when they observed others subjecting Plaintiff to excessive force.

51. Plaintiff then spent 1 day in Criminal Court and then 9 days in Riker's Island ("Rikers"). Plaintiff was placed in lock up on May 27th, 2022 at 2:30 P.M. and was held until June 4th 2022.

52. On May 31st, 2022 Assistant District Attorney Brandon Quinones of the Queens County District Attorney's Office requested that the pottery clay be tested for controlled substance analysis.

53. On June 1st, 2022, The New York City Police Department Police Laboratory performed a Controlled Substance Analysis of the pottery clay. The results of the lab tests confirmed that the pottery clay was not a controlled substance.

54. Despite the negative lab results for controlled substances, Plaintiff was not immediately released. Plaintiff was continued to be held unlawfully and against his will until June 4th, 2022. Plaintiff's prolonged detainment was done for the purpose of further harassing the Plaintiff, despite Plaintiff's innocence.

55. Furthermore, while in custody on Riker's Plaintiff endured undue hardship. Plaintiff was witness to several fights during his stay, including a fight that resulted in a lockdown. Despite not being a part of the fight, Plaintiff was maced by corrections officers.

56. During his stay at Rikers, Plaintiff was consistently offered plea deals, but Plaintiff maintained his innocence.

57. It was not until July 2022 that the prosecution officially lifted the false charges against Plaintiff.

58. Plaintiff's unlawful arrest and detention has resulted in physical injuries extending

to his ankles, legs, knees, and hip, which still persist and affect Plaintiff's everyday life.

59. Additionally, Plaintiff continues to have paranoia, anxiety, insomnia, PTSD, flashbacks, nightmares, and fear due to his unlawful arrest and detention.

60. The NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

61. Additionally, defendants' actions with respect to the underlying arrest of Plaintiff, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

62. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of the NYPD and City of New York.

63. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative

of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

64. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City was fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants BRANDENBURG, LEWIS and JOHN DOES.

65. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

66. The aforementioned acts of Defendants, including the CITY, BRANDENBURG, LEWIS and JOHN DOES, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, including but not limited, 42 U.S.C. Section 1983, the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

67. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, the loss of earnings and potential earnings, physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, depression, traumatization, frustration, extreme inconvenience and anxiety, property damage and was caused to incur medical and legal expenses.

FEDERAL CAUSES OF ACTION

AS AND FOR A FIRST CAUSE OF ACTION

AS AGAINST DEFENDANTS,

BRANDENBURG, LEWIS and JOHN DOES

(False Arrest Under 42 U.S.C. §1983)

68. Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs numbered "1" through "67" above as if fully set forth herein.

69. That on May 26, 2022, Plaintiff was a resident of Far Rockaway, Queens County, State of New York.

70. That on said date, Defendant, CITY, its agents, servants and/or employees, including but not limited to, Defendants, BRANDENBURG, LEWIS, and JOHN DOES, did forcibly enter Plaintiff's aforesaid apartment.

71. That the aforesaid police officers forcibly entered Plaintiff's apartment acting under the color of law and during and in the scope of their employment for Defendant, CITY.

72. That the forcible entry by said police officers was unreasonable, unlawful, without provocation or probable cause.

73. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home

at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Defendant, CITY, its agents, servants and/or employees, arrested Plaintiff without a warrant and without probable cause.

74. That the actions taken by Defendant, CITY, its agents, servants and/or employees, were undertaken under color of law and would not have existed but for said Defendants' using their official power.

75. That Defendant, CITY, its agents, servants and/or employees, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

76. That the conduct and actions of Defendant, CITY, its agents, servants and/or employees, acting under color of State law, in falsely arresting Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

77. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Defendant, BRANDENBURG, arrested Plaintiff without a warrant and without probable cause.

78. That the actions taken by Defendant, BRANDENBURG, were undertaken

under color of law and would not have existed but for said Defendant using his official power.

79. That Defendant, BRANDENBURG, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

80. That the conduct and actions of Defendant, BRANDENBURG, acting under color of State law, in falsely arresting Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

81. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Defendant, LEWIS, arrested Plaintiff without a warrant and without probable cause.

82. That the actions taken by Defendant, LEWIS, were undertaken under color of law and would not have existed but for said Defendant using his official power.

83. That Defendant, LEWIS, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

84. That the conduct and actions of Defendant, LEWIS, acting under color of

State law, in falsely arresting Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

85. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Defendants, JOHN DOES, arrested Plaintiff without a warrant and without probable cause.

86. That the actions taken by Defendants, JOHN DOES, were undertaken under color of law and would not have existed but for said Defendant using his official power.

87. That Defendants, JOHN DOES, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

88. That the conduct and actions of Defendants, JOHN DOES, acting under color of State law, in falsely arresting Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

89. As a result of the above-mentioned constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

90. By reason of the foregoing, Plaintiff demands judgment in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF
ACTION AGAINST DEFENDANTS,
BRANDENBURG, LEWIS and JOHN DOES
(False Imprisonment Under 42 U.S.C. §1983)

91. Plaintiff repeats, realleges and reiterates each and every allegation contained in Paragraphs numbered "1" through "90" above as if fully set forth herein.

92. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was wrongfully arrested by police officers, agents, servants and/or employees, employed by the Defendant, CITY.

93. Defendant CITY, through its police officers, agents, servants and/or employees, did wrongfully detain and imprison Plaintiff without probable cause and without an arrest warrant.

94. Defendant, CITY, through its police officers, agents, servants and/or employees, did wrongfully detain and imprison Plaintiff without probable cause and without a valid search warrant.

95. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home

at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was wrongfully arrested by Defendant, BRANDENBERG.

96. Defendant, BRANDENBURG, did wrongfully detain and imprison Plaintiff without probable cause and without an arrest warrant.

97. Defendant, BRANDENBURG, did wrongfully detain and imprison Plaintiff without probable and without a valid search warrant.

98. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was wrongfully arrested by Defendant, LEWIS.

99. Defendant, LEWIS, did wrongfully detain and imprison Plaintiff without probable cause and without an arrest warrant.

100. Defendant LEWIS did wrongfully detain and imprison Plaintiff without probable cause and without a valid search warrant.

101. On May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was wrongfully arrested by Defendants, JOHN DOES.

102. Defendants, JOHN DOES, did wrongfully detain and imprison Plaintiff without probable cause and without an arrest warrant.

103. Defendants, JOHN DOES, did wrongfully detain and imprison Plaintiff without probable and without a valid search warrant.

104. In commencing and continuing said wrongful detention and imprisonment, Defendants caused Plaintiff to be wrongfully detained in violation of his rights under the United States Constitution.

105. Plaintiff was charged unlawfully with criminal possession of a controlled substance in the first degree.

106. Plaintiff was eventually released on June 4th, 2022, and in July 2022 all charges were officially dismissed.

107. At the time of the unlawful imprisonment, Plaintiff had not committed any illegal act.

108. At the time of the unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

109. At the time of Plaintiff's unlawful imprisonment, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

110. Defendant CITY, through its agents, servants and/or employees, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

111. Defendant, BRANDENBURG, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

112. Defendant, LEWIS, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

113. Defendants, JOHN DOES, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

114. Defendants willfully and wrongfully accused Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

115. The aforesaid arrest and detention was malicious, unlawful and not based upon a valid warrant, probable cause, and/or any other justification, and was therefore a false arrest.

116. The Defendants violated the Fourth and Fourteenth Amendments of the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

117. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff were carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

118. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

119. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, property damage, violation of civil rights, property damage, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

120. By reason of the foregoing, Plaintiff demands judgment in a sum of money which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD
CAUSE OF ACTION
AGAINST DEFENDANTS,
BRANDENBURG, LEWIS
and JOHN DOE

(Unlawful Search & Seizure
Under 42 U.S.C. §1983)

121. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "120" above as if fully set forth herein.

122. Defendants subjected Plaintiff's person and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause.

123. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

124. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

125. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

126. Accordingly, Defendants violated Plaintiff's rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused

to incur medical and legal expenses.

128. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF
ACTION AGAINST DEFENDANTS,
BRANDENBURG, LEWIS and JOHN DOE**
(Excessive Force Under 42 U.S.C. §1983)

129. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "128" above as if fully set forth herein.

130. The forcible entry into the home of Plaintiff and seizure of the Plaintiff and his property constituted the use of excessive force in the performance of the Defendants' police duties and under color of law.

131. The Defendants violated Plaintiff's rights, including but not limited to, rights under the Fourth and Fourteenth Amendments to the Constitution of the United States, because Defendants used unreasonable force without the consent of Plaintiff.

132. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without consent.

133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

134. That by reason of the foregoing, Plaintiff has been damaged in a sum

that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT, CITY
(Municipal Liability Under 42 U.S.C. §1983)

135. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "134" above as if fully set forth herein.

136. That the actions of Defendant, CITY, its agents, servants and/or employees, including but not limited to, Defendants, BRANDENBURG, LEWIS, and JOHN DOES, constitute unlawful arrest, detention, imprisonment, assault and battery and were designed to and did cause specific and serious bodily harm, pain and suffering and property damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, including Amendments Four and Fourteen.

137. That the supervisors and policy making officers of Defendant, CITY, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

138. That Defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

139. That Defendant, CITY, hired and retained in its employ certain police officers, including but not limited to, Defendants, BRANDENBURG, LEWIS and JOHN DOES, with knowledge that said police officers have vicious propensities and were, therefore, unfit to be police officers.

140. At all times herein mentioned, Defendant, CITY, acting through its police department, had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of Defendants, BRANDENBURG, LEWIS and JOHN DOES.

141. That these policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force, in warrantless and otherwise unconstitutional entry into private homes and in impermissible arrests and imprisonments, particularly those who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

142. At all times herein mentioned, Defendant, CITY, had in effect policies, practices and customs of allowing, permitting and/or ratifying police officers' warrantless arrests and assaults on detainees.

143. That the policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions is evidenced, inter alia, by the following:

- a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended;
- b) The fact that cases where complaints have been lodged against police officers were inadequately investigated;
- c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of

alleged misconduct;

- d) The fact that, upon information and belief, only a small number of police officers have been fired for such misconduct;
- e) The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

144. That Defendant, CITY, and the NYPD, tolerate and encourages police officers to lie to cover up wrongful conduct as evidenced by the Monell Commission Report. The effect of this was to permit police officers of the NYPD to function at levels of significant and substantial risk to the public.

145. That the policymakers of the Defendant, CITY, and the NYPD, knew or should have known that defendant police officers, BRANDENBURG, LEWIS and JOHN DOES, and other police officers in the department were violating people's constitutional rights and that defendants were taking actions that were violating the substantive due process right of the people of the City of New York.

146. That Defendant, CITY, failed to effectively screen, hire, train, supervise and discipline its police officers, including but not limited to, defendant police officers, BRANDENBURG, LEWIS and JOHN DOES, herein for their propensity for violence, including excessive use of force and restraint and their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing defendant police officers, BRANDENBURG, LEWIS and JOHN DOES, herein to falsely arrest, imprison, assault and batter and/or excessively restrain Plaintiff and to otherwise cause him injury and violate his federal and state constitutional rights, or to permit these actions to take place with their knowledge or consent.

147. The defendant police officers, BRANDENBURG, LEWIS and JOHN DOES, herein have been the subject of prior civilian and/or departmental complaints of misconduct that put, or should have put, the Defendant, CITY, and the NYPD on notice that the defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff herein.

148. The Defendant, CITY, failed to put into place and to otherwise maintain an adequate structure for risk containment and stress management relative to its police officers in that the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the NYPD to function at levels of significant and substantial risk to the public.

149. That as a result of the foregoing conscious policies, practices, customs or usages, Defendant, CITY, has permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unconstitutional behavior.

150. That such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to Plaintiff herein.

151. As a direct and proximate result of the foregoing, Plaintiff was caused to suffer personal injuries, property damage, false arrest, false imprisonment, violation of civil

rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

152. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

STATE CAUSES OF ACTION

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest)

153. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "152" above as if fully set forth herein.

154. That on May 26, 2022, at approximately 5:30 a.m., Plaintiff was unlawfully, unjustifiably and intentionally arrested, transported, detained, deprived of his liberty and imprisoned.

155. The unjustifiable, unlawful and intentional arrest, transportation and imprisonment was carried out without a warrant.

156. The unlawful arrest and imprisonment of Plaintiff was without probable cause that Plaintiff committed an offense for which an arrest is permitted, was forcible and was against Plaintiff's will.

157. All of the foregoing occurred with any fault on the part of Plaintiff.

158. At all relevant times Plaintiff was aware of his confinement.

159. At all relevant times, the Defendants, BRANDENBURG, LEWIS and JOHN DOES, were employees of the Defendant, CITY, and the NYPD, and were acting for, upon, and in furtherance of the business of their employer and within the scope of

their employment.

160. That as a result of the foregoing, Defendant, CITY, is liable under the doctrine of *respondeat superior* for the tortious actions of the Defendants, BRANDENBURG, LEWIS and JOHN DOES.

161. As a direct and proximate result of this unlawful conduct, Plaintiff sustained personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

162. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Imprisonment)

163. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "162" above as if fully set forth herein.

164. Defendants unlawfully detained Plaintiff for an unreasonable period of time after they knew, or should have known, that he had committed no crime.

165. False imprisonment is the nonconsensual, intentional confinement of a person, without lawful privilege.

166. All of the foregoing occurred with any fault on the part of Plaintiff.

167. At all relevant times Plaintiff was aware of his confinement.

168. At all relevant times, the Defendants, BRANDENBURG, LEWIS and JOHN DOES, were employees of the Defendant, CITY, and the NYPD, and were acting

for, upon, and in furtherance of the business of their employer and within the scope of their employment.

169. That as a result of the foregoing, Defendant, CITY, is liable under the doctrine of *respondeat superior* for the tortious actions of the Defendants, BRANDENBURG, LEWIS and JOHN DOES.

170. As a direct and proximate result of this unlawful conduct, Plaintiff sustained personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

171. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Unlawful Search and Seizure)

172. Plaintiff repeats, reiterates and realleges each and every allegation contained allegation contained in paragraphs numbered "1" through "171" above as if fully set forth herein.

173. Defendants subjected Plaintiff's person and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause.

174. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

175. Plaintiff did not consent to the unreasonable searches and seizures to his person

or property.

176. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

177. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York, and section 8, of Article II to the New York Civil Rights Law.

178. Defendants failed to provide Plaintiff a copy of search warrant violating Defendants' rights under CPL §690.50.

179. Additionally, Defendants failed to provide Plaintiff a copy of search warrant when requested, violating Defendants rights under CPL §690.50.

180. Furthermore, Defendants failed to provide Plaintiff an inventory of seized items.

181. At all relevant times, the Defendants, BRANDENBURG, LEWIS and JOHN DOES, were employees of the Defendant, CITY, and the NYPD, and were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

182. That as a result of the foregoing, Defendant CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondent superior*.

183. As a direct and proximate result of this unlawful conduct, Plaintiff sustained personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of

freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

184. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Excessive Force)

185. Plaintiff repeats, reiterates and realleges each and every allegation contained allegation contained in paragraphs numbered "1" through "184" above as if fully set forth herein.

186. During the course of unlawfully arresting the Plaintiff, the police officer defendants, BRANDENBURG, LEWIS and JOHN DOES, used more force than necessary to enter into Plaintiff's home and detain Plaintiff.

187. During the course of unlawfully arresting Plaintiff, the police officer defendants, BRANDENBRUG, LEWIS and JOHN DOES, used an unreasonable amount of force and caused Plaintiff physical injuries.

188. At all relevant times, the police officer defendants, BRANDENBURG LEWIS and JOHN DOES, were employees of the Defendant, CITY, and were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

189. That as a result of the foregoing, Defendant CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondent superior*.

190. As a direct and proximate result of this unlawful conduct, Plaintiff sustained personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

191. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault & Battery)

192. Plaintiff repeats, reiterates and realleges each and every allegation contained allegation contained in paragraphs numbered "1" through "191" above as if fully set forth herein.

193. That on May 26, 2022 at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was assaulted and battered by members of the New York City Police Department.

194. That on May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was assaulted and battered by Defendant, BRANDENBERG.

195. That on May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was assaulted and battered by Defendant, LEWIS.

196. That on May 26, 2022, at approximately 5:30 a.m., at and around Plaintiff's home at 14-80 Beach Channel Drive in Far Rockaway, New York in the County of Queens, City and State of New York, Plaintiff was assaulted and battered by Defendants, JOHN DOES.

197. That at all times mentioned herein, members of the New York City Police Department were acting under the color of authority, and in furtherance of their employer, Defendant, CITY, and the NYPD's interest.

198. That at all times mentioned herein, Defendant, BRANDENBURG, was acting under the color of authority, and in furtherance of his employer, Defendant, CITY, and the NYPD's, interest.

199. That at all times mentioned herein, Defendant, LEWIS, was acting under the color of authority, and in furtherance of his employer, Defendant, CITY, and the NYPD's, interest.

200. That at all times mentioned herein, Defendants, JOHN DOES, were acting under the color of authority, and in furtherance of their employer, Defendant, CITY, and the NYPD's, interest.

201. That the aforementioned conduct of Defendant, CITY's, employees was willful and wanton and the Defendants acted with reckless disregard for the consequences of their actions.

202. That the aforementioned conduct of Defendant, BRANDENBURG, was willful and wanton and the Defendant acted with reckless disregard for the consequences of his actions.

203. That the aforementioned conduct of Defendant, LEWIS, was willful and wanton and the Defendant acted with reckless disregard for the consequences of his actions.

204. That the aforementioned conduct of Defendants, JOHN DOES, was willful and wanton and the Defendants acted with reckless disregard for the consequences of their actions.

205. Defendants caused Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

206. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered Plaintiff without his consent or other legal justification therefor.

207. Defendant CITY, as employer of the police officer Defendants, BRANDENBURG, LEWIS and JOHN DOES, is responsible for their wrongdoing under the doctrine of *respondent superior*.

208. As a result of the foregoing, Plaintiff was thereby injured.

209. As a direct and proximate result of this breach, Plaintiff sustained personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

210. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AGAINST ALL
DEFENDANTS
(Negligence)

211. Plaintiff repeats, reiterates and realleges each and every allegation contained allegation contained in paragraphs numbered "1" through "210" above as if fully set forth herein.

212. At all times herein mentioned Defendants undertook the responsibility and duty to maintain, operate and direct their actions to provide public safety and to act with the bounds of law.

213. Defendant CITY, through its agents, servants and/or employees, negligently performed its police duties and failed to use that degree of care as reasonably prudent police officers would have under similar circumstances.

214. Defendant, BRANDENBURG, negligently performed his police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

215. Defendant, LEWIS, negligently performed his police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

216. Defendants, JOHN DOES, negligently performed their police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

217. As a result of Defendants' negligence, Plaintiff was caused to suffer personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal expenses.

218. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST DEFENDANT,
CITY

(Negligent Hiring, Training, Retention & Supervision Under New York State Law)

219. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "218" above as if fully set forth herein.

220. Defendant, CITY, owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants, including but not limited to Defendants, BRANDENBURG, LEWIS and JOHN DOES.

221. Defendant, CITY, breached those duties of care.

222. Defendant, CITY, placed its agents, servants and/or employees, including but not limited to, Defendants, BRANDENBURG, LEWIS and JOHN DOES, herein in a position where they could inflict foreseeable harm.

223. Defendant, CITY, knew or should have known of its agents, servants and/or employees, including but not limited to, Defendants, BRANDENBURG, LEWIS and JOHN DOES, propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

224. Defendant, CITY, failed to take reasonable measures in hiring, training, retaining, or supervising its agents, servants and/or employees, including but not limited to, Defendants, BRANDENBURG, LEWIS and JOHN DOES, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

225. That the actions of Defendant, CITY, heretofore described constitute negligence in that Defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, including but not limited to Defendants, BRANDENBERG, LEWIS and JOHN

DOES.

226. That the actions of Defendant, CITY, heretofore described constitute negligence in that Defendant, CITY, negligently supervised or failed to supervise its agents, servants and/or employees, including but not limited to Defendants, BRANDENBERG, LEWIS and JOHN DOES.

227. The actions of Defendant, CITY, heretofore described constitute negligence in that Defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, including but not limited to Defendants, BRANDENBERG, LEWIS and JOHN DOES.

228. Defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, including but not limited to Defendants, BRANDENBERG, LEWIS and JOHN DOES, who Defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold their position.

229. Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, including but not limited to Defendants, BRANDENBERG, LEWIS and JOHN DOES, who Defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold the position in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their position.

230. As a result of Defendant's negligence, Plaintiff was caused to suffer personal injuries, property damage, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community and was caused to incur medical and legal

expenses.

231. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AGAINST DEFENDANT,

CITY

(Respondeat Superior)

232. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "231" above as if fully set forth herein.

233. At all times hereinafter mentioned, all defendant employees of the Defendant, CITY, were acting for, upon and in furtherance of the business of their employer and within the scope of their employment.

234. That as a result of the foregoing, Defendant, CITY, is liable to the Plaintiff for the tortious actions of its various agents, servants and employees, including but not limited to, Defendants, BRANDENBURG, LEWIS and JOHN DOES, under the legal theories of "Vicarious Liability" and "Respondeat Superior".

WHEREFORE, Plaintiff, JIMMY BATISTA, respectfully demands judgment against Defendants, THE CITY OF NEW YORK, JEREMY BRANDENBURG, MATTHEW LEWIS and JOHN DOES, jointly and severally, as follows:

A. An award for compensatory damages in a sum of money which exceeds the jurisdictional limits of all Courts which would otherwise have jurisdiction;

B. An award for punitive damages in an amount to be determined at trial;

C. An award of reasonable attorney's fee, costs and disbursements of this

action; and

D. For such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: Stony Point, NY
April 11, 2023



JEFFREY F. MILLMAN, ESQ.
PHILLIPS & MILLMAN, LLP
Attorneys for Plaintiff
148 South Liberty Drive
Stony Point, New York 10980
(845) 947-1100

STATE OF NEW YORK, COUNTY OF ROCKLAND ss:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, say that:

I am the attorney for the Plaintiff, Jimmy Batista. I have read the annexed Complaint, know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following: Conversations with the Plaintiff, investigation and review of my file, among other things.

The reason I make this affirmation instead of the Plaintiff, is that the Plaintiff does not reside in the County in which I maintain my office.

Dated: Stony Point, New York
April 11, 2023


JEFFREY T. MILLMAN, ESQ.